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Tentative Ruling

Re: ***Bedrosian v. Saint Agnes Medical Center***
Superior Court Case No. 24CECG05453

Hearing Date: May 20, 2026 (Dept. 502)

Motion: By Plaintiffs to Compel Production of Documents From
Defendant Saint Agnes Medical Center

Tentative Ruling:

To continue the motion to July 8, 2026, at 3: 30 p.m. in Department 501. SAMC is ordered to complete its document production and serve a privilege log by June 3, 2026. Supplemental opposition and reply papers on the issues addressed below shall be filed per Code (Code Civ. Proc., § 1005, subd. (b)) based on the continued hearing date.

Explanation:

This discovery dispute centers on Request for Production of Documents, Set One, propounded by plaintiffs on Saint Agnes Medical Center ("SAMC") on February 12, 2025. SAMC served its initial written responses on March 18, 2025. Part of the delay in bringing this dispute before the court was the parties' agreements to put discovery proceedings on hold on two occasions, once while a demurrer was pending, and again while they were pursuing mediation.

SAMC's responses included various objections, and SAMC insisted on entry of a protective order before full production of responsive documents. The stipulated protective order was finally entered on December 18, 2025.

SAMC contends that the motion should be denied for failure to comply with Local Rule 2.1.17. The Request for Pretrial Discovery Conference ("Request") was filed on October 2, 2025, and focused on issues relating to the protective order. However, the Request specifically identified the discovery dispute as pertaining to Request for Production of Documents, Set One, and concluded with a request that SAMC be ordered to produce responsive documents immediately and pay sanctions. The Request's summary of the dispute focused on the protective order demanded by SAMC because that was the basis for refusal to produce documents maintained by SAMC at that time. The court finds there was compliance with Local Rule 2.1.17.

SAMC has supplemented its responses to the document demand twice, most recently on January 16, 2026. Plaintiffs' counsel filed the instant motion to compel on January 29, 2026, without further meet and confer on the supplemental responses. SAMC requests that the court deny the motion due to the failure to meet and confer regarding the January 16, 2026 further supplemental responses.

The Civil Discovery Act requires a reasonable good-faith attempt to informally resolve the discovery dispute. (Code Civ. Proc., § 216.040.) Whether the attempt at informal resolution was reasonable and in good faith is measured against the history of

the dispute and complexity of the issues. (See *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431–434.)

In this case the court finds that further meet and confer was not necessary. The parties engaged in extensive meet and confer beginning in March of 2025, and extending beyond the filing of the motion. SAMC's January 16, 2026 supplemental responses did not provide much substantively new content. The "Patient Safety Work Product Privilege" was improperly added to the January 16, 2026 supplemental responses. Failure to object on a ground by the initial response deadline waives the objection. (See Code Civ. Proc., § 2031.300.) Accordingly that objection is waived and should not have been added to supplemental responses. Removal of the phrase "Subject to the limitations in Paragraph 5 of the General Objections" from some responses is not a substantive change. Finally, the response to RFP No. 28 (seeking "All agreements between SAMC and VITUITY for hospitalist services") was revised to state: "Defendant has conducted a diligent search and reasonable inquiry and has identified no responsive and nonprivileged documents in its possession, custody, or control." To date no privilege log has been provided. The court declines to deny the motion for failure to meet and confer on this issue alone. SAMC must provide a privilege log if privilege is the basis for failure to produce responsive documents. (See Code Civ. Proc., § 2031.240, subd. (c)(1).)

The final status of the discovery dispute is unknown to the court as of the filing of the reply papers because SAMC maintains that further production is forthcoming, anticipating that production would be complete by the end of April 2026. The problem is throughout the history of this dispute SAMC has promised numerous times production by specified dates, but again and again failed to provide full production.

The reply seems to take the position that the discovery dispute would be resolved by production of the following eight categories of documents: (1) drafts of the Vituity Agreement (Nos. 1, 3, 6); (2) an unredacted copy of the final Vituity Agreement (RPD No. 1); (3) email communications with Vituity regarding the Agreement, including communications involving SAMC's CEO (Nos. 8, 11–12); (4) internal SAMC communications regarding the proposed Agreement (Nos. 7–10); (5) proposals, presentations, and analyses referenced in documents SAMC already produced (Nos. 3, 6, 23– 25); (6) insurance policies potentially applying to the dispute; (7) documents relating to the prior business between SAMC's CEO, Dr. Kaur, and Vituity, directly relevant given Vituity received the exclusive contract shortly after Dr. Kaur was appointed CEO and Dr. Kaur was previously a Vituity partner (No. 11); and (8) documents proving SAMC's defense that the Agreement was necessitated by regulatory concerns regarding SAMC's hospitalist program (Nos. 15–22, 26–27, 31).

It is unclear if SAMC intends to produce these documents. SAMC objects to the reply declaration as presenting new information and evidence, and to the shifting position in the reply. The objection will not be sustained. This is in large part due to SAMC's apparently never-ending rolling production, creating an ever-shifting target for plaintiffs. SAMC has stated that its production would be complete by the end of April, but it has said that before and has repeatedly missed deadlines to produce documents.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/18/26
(Judge's initials) (Date)